SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/02/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922
CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE
HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION
FILED BY:
TENTATIVE RULING:

Before the Court is Cross-Defendant Trek Holdings LLC and Cross-Defendant Kevin Pickolick (collectively, "Cross-Defendants")'s Motion for Summary Judgment or in the alternative Summary Adjudication ("Motion"). The Motion relates to Cross-Complainant CarePatrol Franchise Systems, LLC ("Cross-Complainant" or "CarePatrol")'s Cross-Complaint for declaratory relief.

As an initial matter, the Court notes that Cross-Complainant has failed to comply with the requirements of the Code of Civil Procedure and the California Rules of Court as to their response to Cross-Defendants' separate statement.

The separate statement "is an indispensable part of the summary judgment or adjudication process" because it plainly identifies factual issues and allows the trial court to determine whether a trial is required to establish those facts and resolve the dispute. (*Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902; see *Collins v. Hertz Corp*. (2006) 144 Cal.App.4th 64, 73.) "Opposition separate statements must cite to facts and evidence for the evidence to be considered by the court." (*Bacoka v. Best Buy Stores, L.P.* (2021) 71 Cal.App.5th 126, 131, fn. 1.)

CCP Section 437c(b)(3) requires the opposing party to indicate whether they agree or disagree that a fact is undisputed. If disputed, the opposing party must set forth a reference to supporting evidence. Failure to comply may be grounds for the court to grant the motion. Similarly, CRC 3.1350(f) requires the opposing party to "unequivocally state whether each fact is 'disputed' or 'undisputed'." If disputed the opposing party must describe the nature of the dispute and describe the evidence that supports that position by citing to exhibit, title, page and line numbers. Here, Cross-Complainant frequently purported to deny facts without citation to any evidence, or made general reference to entire exhibits without specificity. That is inadequate and those "disputed" facts are functionally undisputed.

For the following reasons, Cross-Defendants' motion for summary judgment is **granted**.

<u>Request for Judicial Notice</u>

Cross-Defendants' unopposed request for judicial notice is **granted**, subject to limitations. (Evid. Code §§ 452, 453; *People v. Franklin* (2016) 63 Cal.4th 261, 280 ["A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."] [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

<u>Legal Standard</u>

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

> A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

> A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of

material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid*.; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co*. (1990) 223 Cal.App.3d 1, 18.)

<u>Analysis</u>

This is a business dispute related to a Master Franchise Representative Agreement (the "MFRA") entered into between Plaintiff and Cross-Defendant Trek Holdings LLC and Defendant and Cross-Complainant CarePatrol Franchise Systtems LLC on April 30, 2012.

Cross-Defendants move for summary judgment (or in the alternative summary adjudication) on Cross-Complainant's two causes of action for declaratory relief on several grounds. Cross-Complainant's first cause of action for declaratory relief has three separate issues on which CarePatrol seeks a judicial declaration, and the second cause of action for declaratory relief has a single issue. The Court takes each issue in turn.

> ISSUE 1: Because there is an actual case and controversy regarding whether or not Trek breached Section 5.B of the MFRA by failing to meet its Minimum Quota, CarePatrol seeks a declaration that Trek breached the MFRA by failing to meet the Minimum Quota.

As a threshold issue, Cross-Defendant argues that this claim is time-barred under section 22D of the MFRA which requires all claims arising out of the agreement to be brought within two years of the time that the claim first was discovered or reasonably should have been discovered. In opposition, CarePatrol argues that "[e]ven if the Court were to disregard any shortfalls prior to the last two years of the MFRA, Plaintiff still failed to meet the applicable quotas during that period." (Opp. at 9:12-13.)

That said, Cross-Defendants have adduced evidence that Cross-Complainant's failure to comply with the federal and state disclosure laws, including maintaining an active Franchise Disclosure Document ("FDD") precluded Trek from opening franchises, each year as a matter of law. (SUF 13, 17-27, 30.)

Specifically, Section 5C of the MFRA provides "[CarePatrol] will, at its own expense, comply with all franchise registration and disclosure laws (including preparing and registering, if required, the [FDD] and Master Franchise Representative Agreements)." (SUF 13.) Section 5B of the MFRA also provides: "If economic, financial or internal [CarePatrol] issues inhibit [Trek]'s ability to meet the minimum performance requirements, [CarePatrol] will reasonably modify the performance schedule in Exhibit B." (SUF at ¶ 12 .)

Corporations Code section 31110 makes it an offense to sell franchises without proper registration. (Corp. Code § 31110.) It is undisputed that this precluded Trek from engaging with any prospective franchisees in any meaningful way during what they describe as "FDD dark periods." (SUF 50.) Cross-Defendants have adduced evidence that the specific days that CarePatrol could not sell by law were as follows: the Expiration Date of April 22, 2013 to the Effective Date of May 16, 2013 (16 Days); the Expiration Date of April 23, 2014 to the Effective Date of May 12, 2014 (19 Days); the Expiration Date of April 20, 2015 to the Effective Date of July 21, 2015 (92 Days); the Expiration Date of April 20, 2016 to the Effective Date of May 18, 2016 (28 Days); the Expiration Date of April 20, 2017 to the Effective

Date of October 10, 2017 (173 Days); the Expiration Date of April 20, 2018 to the Effective Date of October 9, 2018 (172 Days); the Expiration Date of April 22, 2019 to the Effective Date of July 1, 2019 (70 Days); the Expiration of April 20, 2020 to the Effective Date of September 18, 2020 (151 Days); the Expiration Date of April 20, 2021 to the Effective Date July 16, 2021. (Exhibit 15 at p. 119.)

During the last two-year period of the MFRA, Trek's performance was entirely barred by law for 271 days spanning a total of 10 months. (SUF 30.) Cross-Defendants argue that Cross-Complainant's continuous breach precludes its claim for breach of contract against Trek. (Motion at 13:20-14:1 [citing cases].)

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) A party's failure to perform a condition precedent will preclude an action for breach of contract. (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 592; *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1192.) "Where one party's obligation is dependent on the prior proper performance of the other party, and that other party does not perform, the obligation is excused." (*Alki Partners*, at p. 1192.) Here, it is undisputed that Trek could not sell franchises for a considerable portion of the last two years of the MFRA, making it impossible for them to meet their quota as a practical matter.

Even if Trek's obligations were not wholly excused by CarePatrol's lack of performance, CarePatrol failured to give Trek notice and opportunity to cure as required by the MFRA. (SUF 10 [Section 14B of the MFRA provides: "In the event of default, Franchisor will notify Master Franchise Representative in writing of the breach, and will provide Master Franchise Representative 60-days notice to correct the breach. Failure to correct the breach within the 60-day period shall be grounds for immediate termination of this Agreement on written notice."].) It is undisputed that at no time before the Notice of Nonrenewal did CarePatrol give Trek a required Notice of Breach. (UMF 45.)

Cross-Defendants have met their initial burden with respect to Cross-Complainant's first declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

> ISSUE 2: Because there is an actual case and controversy regarding whether or not Trek breached Section 5.B of the MFRA as modified by the CarePatrol's offer to reduce the quota by ten, CarePatrol seeks a declaration that Trek breached the MFRA by failing to meet the modified Minimum Quota of ten franchised locations before the date the MFRA expired.

Cross-Defendants move for summary adjudication on this issue on the grounds that the parties never agreed to the modification and therefore the contract term Cross-Complainant seeks to enforce does not exist.

A threshold element of breach of contract is existence of the contract. (See *Oasis West Realty*, supra, at p.821.) Here, the evidence is undisputed that the MFRA provides for an Annual Franchise Quota of four franchises per year. (SUF 7–8.) It is undisputed that the parties never modified this term. (SUF 47–48.) On October 13, 2021, Cross-Complainant's Notice of Nonrenewal purported to unilaterally amend the Annual Franchise Quota by requiring that Trek open ten franchises in the following six months. (SUF 8, 43–44.) This Adjusted Quota is the "obligation" for which Cross-Plaintiff seeks declaratory relief. (Cross-Compl. at ¶ 31.) However, it is undisputed that Trek did not agree to this modification. (SUF 47, 48.) Indeed, it is undisputed that the MFRA was never modified and that Trek rejected this demand. (SUF 47; Cross-Compl. at ¶¶ 24, 26.) In fact, by its own terms, Cross-

Complainant characterizes the issue as “an **offer** to reduce the quota by ten.”

In the absence of an enforceable contract term, there is no actual controversy between the parties. (CCP § 1060 [an action for declaratory relief is authorized only when an actual controversy exists].) “‘[S]ection 1060 does not require a breach of contract in order to obtain declaratory relief, only an ‘actual controversy.’ Declaratory relief pursuant to this section has frequently been used as a means of settling controversies between parties to a contract regarding the nature of their contractual rights and obligations.’” (*Osseous Technologies of America, Inc. v. Discovery Ortho Partners LLC* (2010) 191 Cal.App.4th 357, 365 [quoting *Meyer v. Sprint Spectrum LP* (2009) 45 Cal.4th 634, 647].) Declaratory relief operates prospectively. (*Id*. at p. 366.)

Cross-Complainant cannot establish the basis for declaratory relief with respect to this issue. Cross-Defendants have met their initial burden with respect to Cross-Complainant’s second declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

> ISSUE 3: Because there is an actual case and controversy regarding whether or not Trek breached Section 5.B of the MFRA as modified by CarePatrol’s offer to renew if Trek sold ten franchises before the expiration date, CarePatrol seeks a declaration that CarePatrol was under no obligation to renew the MFRA.

Cross-Defendants argue that Cross-Complainant cannot show that Trek was in breach because CarePatrol’s own acts excused Trek’s performance and/or bar CarePatrol from claiming Trek was in breach.

As discussed at length above, it is undisputed that CarePatrol’s claims prior to the period concluding April 30, 2020 are time-barred; that CarePatrol repeatedly breached its obligation to be FDD compliant; that California Civil Code section 1511 barred Trek from sales while CarePatrol was non-compliant; that CarePatrol failed to provide notice and an opportunity to cure; and that the parties never agreed to CarePatrol’s purported unilateral increase in Trek’s Annual Franchise Quota. It is also undisputed that the MFRA was never modified in any way. (SUF 48.)

Cross-Defendants have met their initial burden with respect to Cross-Complainant’s third declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

Because Cross-Defendants have met their burden with respect to the three issues asserted in Cross-Complainant’s first cause of action for declaratory judgment, they are entitled to summary adjudication of that claim.

> ISSUE 4: Because there is an actual case and controversy regarding whether or not CarePatrol properly extended time pursuant to section 20026 of the California Franchise Relations Act and California Business and Professions Code section 20000, CarePatrol seeks a declaration that CarePatrol properly extended time to Trek pursuant to the act, and that Trek refused to accept renewal of the MFRA through lack of action, and later by noticing CarePatrol that Trek had no intention of renewing.

Finally, Cross-Defendants move for summary adjudication on Cross-Complainant’s second cause of action for declaratory relief on the grounds that CarePatrol did not, in fact, extend time under the MFRA.

Here, it is undisputed that the MFRA was never modified in any way, including by any extension. (SUF

48.) In opposition, CarePatrol argues that it did, in fact, offer renewal of the MFRA. (Opposition at § VI (E).) However, this contention is not supported by any evidence. As a consequence, Cross-Complainants have failed to create a genuine dispute of material fact with respect to this issue.

Cross-Defendants have met their initial burden with respect to Cross-Complainant's fourth declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

Because Cross-Defendants have met their burden with respect to the issue asserted in Cross-Complainant's second cause of action for declaratory judgment, they are entitled to summary adjudication of that claim. And because they have met their burden with respect to both Cross-Complainant's first and second causes of action for declaratory judgment, Cross-Defendants are entitled to summary judgment with respect to Cross-Complainant's entire Cross-Complaint.

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).) Here, there were none.

2. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 1ST AMENDED NOTICE OF DEPOSITION**
FILED BY: CANNON, REGINALD R.
****TENTATIVE RULING:****

In view of the hundreds of pages filed by the parties relating to the issues raised in this motion and opposition, the "primary" assigned attorney for each side **shall appea**r via Zoom or in person to discuss appointment of a Discovery Referee.

3. 9:00 AM CASE NUMBER: C25-02554
CASE NAME: SHARI PEDERSEN VS. ANTIQUE CARRIAGE ASSOCIATION
***HEARING ON MOTION IN RE: CHANGE VENUE**
FILED BY: PEDERSEN, SHARI
****TENTATIVE RULING:****

Unopposed, Motion **granted**. Yolo County is the proper venue for this case. Plaintiff shall take all actions necessary and pay transfer and all other fees to accomplish the transfer within 30 days from this date.

4. 9:00 AM CASE NUMBER: C25-03051
CASE NAME: COLLEEN SULLIVAN VS. CONTRA COSTA WATER DISTRICT
HEARING IN RE: RELIEF TO SUBMIT GOVERNMENT CLAIM
FILED BY:
****TENTATIVE RULING:****

Petitioner Colleen Sullivan brings this petition against Contra Costa Water District, seeking an order pursuant to Government Code section 946.6, relieving her from the bar on suit against a public